

PASSED

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 12-29
Time Limit for Proposing or Adopting Changes to the
Election Laws of the Chickasaw Nation**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, a need exists to limit when the Legislature can consider changes to the election laws of the Chickasaw Nation so that the Chickasaw Election Commission can adequately prepare for and properly conduct elections for the Chickasaw Nation.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature approves the adoption of the following amendment to Title 16, Chapter 2 of the Code of the Chickasaw Nation, to wit:

Under **SECTION 16-205 RULES ON LEGISLATION.**, re-number part (B) as part (B) (1) and add the following, numbered as part (B)(2), to wit:

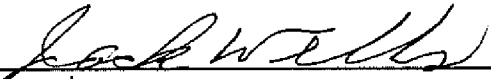
(B)(2) In addition to the time limit requirement for proposed legislation as established in part (B)(1) above, the election laws and rules of the Chickasaw Nation shall be reviewed annually, by the Legislative Committee, beginning October 1st of each year. However, any legislation affecting Election Rules and Regulations shall be submitted to the Legislature no later than April 1st of each year. This rule shall, also, apply to special elections, except that the Legislature can enact specific rules for such special elections as may be needed. Further, this rule, by a two-thirds vote of the Legislature, in the Committee-of-the-whole, can be suspended should emergency election rules be needed after April 1 of each year and prior to October 1 of each year.

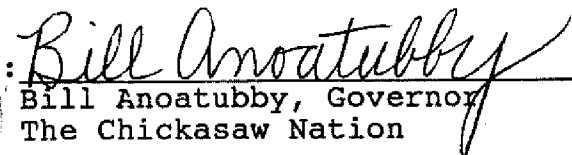
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Executed in regular session of the Chickasaw Tribal Legislature,
meeting at Ada, Oklahoma, on September 15, 1995, by a vote of 13
ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur:  Date: SEP 15 1995
Bill Anoatubby, Governor
The Chickasaw Nation

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Explanation: Adoption of this resolution would limit the Legislature to changing election laws to between October 1st and April 1st, except for Special Elections or when emergency legislation or election rules might be needed. This is to allow the Chickasaw Election Commission to be sure that they know about all the election rules that they have to follow by being sure that new laws or rules are in operation well before the election season.

Requested by: Mooniene Ogee, Legislator
The Legislative Committee

Presented by: Mevelyn Kirkpatrick, Chairman
Election Rules and Regulations Ad Hoc Committee